

# Public Service Broadcasting Act, 2024

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An Act to Amend and Consolidate Laws Relating to Public Service Broadcasting

Preamble: Whereas, it is expedient to amend and consolidate laws relating to public service broadcasting to establish and operate a competitive and publicly accountable public service broadcasting institution to strengthen inclusive democracy by guaranteeing fundamental rights conferred by the Constitution through the production and broadcast of neutral, impartial, factual, and objective information, news, and entertainment programs, and to bring about social and cultural awakening,

The Federal Parliament has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be cited as the "Public Service Broadcasting Act, 2081".  
(2) This Act shall commence on the thirty-first day from the date of its certification. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-
  - (a) "Chairperson" means the Chairperson of the Board of Directors.
  - (b) "Board of Directors" means the Board constituted pursuant to Section 8.
  - (c) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.
  - (d) "Council" means the Council constituted pursuant to Section 6.
  - (e) "Chief Administrative Officer" means the Chief Administrative Officer referred to in Section 17.
  - (f) "Broadcast" means broadcast made through television or radio established and operated with the objective of providing information, messages, and entertainment with the aid of signals, audio, audio-visual, visual images or letters.

- (g) "Ministry" means the Ministry of Communication and Information Technology of the Government of Nepal.
  - (h) "Public Service Broadcasting Institution" means the Public Service Broadcasting Institution established pursuant to Section 3. Chapter-2

Provisions Relating to Establishment and Functions of the Public Service Broadcasting Institution

3. Establishment of Public Service Broadcasting Institution: (1) A Public Service Broadcasting Institution is hereby established to make public broadcasting qualitative, reliable, and effective.  
(2) The central office of the Public Service Broadcasting Institution shall be located in Kathmandu, and the

Institution may establish offices in other places as required.

(3) Upon the commencement of this Act, Nepal Television established under the Communication Corporation Act, 2028 and Radio Nepal established under the Radio Broadcasting Service Development (Committee) Formation Order, 2041 shall be converted into the Public Service Broadcasting Institution. 4. Public Service Broadcasting Institution to be an Autonomous and Corporate Body: (1) The Public Service Broadcasting Institution shall be an autonomous and corporate body with perpetual succession, and it shall acquire legal personality.

(2) As a legal person, the Public Service Broadcasting Institution shall exercise rights, perform duties, and discharge liabilities in accordance with the prevailing law. 5.

Functions of the Public Service Broadcasting Institution: (1) The functions of the Public Service Broadcasting Institution shall be as follows:- (a) to produce and broadcast news, information, messages, and programs that maintain geographical integrity and national unity, social and cultural harmony, promote national interest and nationalism, and enhance good relations among federal units, (b) to produce and broadcast programs to maintain harmony, tolerance, and solidarity among various castes, ethnicities, genders, professions, religions, languages, cultures, and communities, and for the upliftment and development of various classes, regions, and communities, (c) to produce and broadcast programs on matters of public concern and according to the needs of citizens, (d) to extend the reach of broadcasting to all parts of the country to enforce the right to information of citizens, (e) to provide information, messages, and entertainment at national and international levels by making maximum use of developments and new technologies in the field of broadcasting, (f) to protect and promote the national language, endangered mother tongues, arts, culture, and heritage of the country through the dissemination of information, (g) to raise public awareness by disseminating information and early warnings regarding public health, public interest, environment, climate change, disaster, and other emergency situations, (h) to broadcast sports-related programs and to produce and broadcast awareness-raising and entertainment programs, (i) to produce and broadcast programs promoting knowledge, science, and technology, (j) to produce and broadcast programs of the type that contribute to the overall development of the country, (k) to publish and broadcast programs produced, created, and broadcast by it through digital, online, and other technological means, (l) to broadcast programs that assist in strengthening the economy of Nepal by promoting research-based facts on subjects such as agriculture, industry, tourism, and natural resources, thereby promoting employment-oriented programs, (m) to broadcast programs related to the activities of the Federal Parliament, Parliamentary Committees, Provincial Assemblies, Provincial Assembly Committees, and Village Assemblies, and (n) to disseminate information regarding the public policies, decisions, and actions of the government. (2) While producing and broadcasting programs pursuant to Sub-section (1), the Public Service Broadcasting Institution must assimilate the values and norms of human rights, gender equality, proportional inclusion, and the principle of social justice. Chapter-3 Provisions Relating to Formation, Functions, Duties, and Powers of the Council 6.

Formation of Council: (1) A Council shall be constituted to formulate policies for the Public Service Broadcasting Institution and to provide policy directives for the work to be performed by the Institution. (2) The Council shall consist of the following members:- (a) Minister or Minister of State, Ministry - Chairperson (b) Secretary, Ministry - Member (c) Seven members nominated by the Council, including at least three women, from among persons with at least seven years of experience in the field of radio or television, representing each province and the specified areas in a disciplinary manner - Member (d) Two members nominated by the Ministry, including at least one woman, from the audience and viewer groups formed pursuant to Section 21 - Member (e) President, Nepal Federation of Journalists - Member (f) Two members

nominated by the Ministry, including at least one woman, from among professors or associate professors of journalism in recognized universities - Member (g) Chairperson - Member-Secretary (3) While nominating members pursuant to Clauses (c), (d), and (f) of Sub-section (2), it must be done on the basis of the principle of inclusiveness from among women, Dalit, indigenous nationalities, Madhesi, Tharu, Muslim, backward classes, minorities, marginalized groups, persons with disabilities, gender and sexual minorities, peasants, workers, citizens of oppressed or backward regions, and economically poor Khas Arya. (4) A meeting of the Council shall be held at least twice a year on the date and time specified by the Chairperson of the Council. While meeting in this manner, the next meeting must be held within a period not exceeding six months from the date of the previous meeting. (5) If more than fifty percent of the total number of members of the Council are present, it shall be deemed to constitute a quorum for the meeting. (6) Notwithstanding anything contained in Sub-section (5), until the members pursuant to Clause (c) of Sub-section (2) are nominated, the presence of a majority of the members currently serving on the Council shall be deemed to constitute a quorum. (7) The opinion of the majority in a meeting of the Council shall be deemed the decision of the Council, and in the case of a tie, the Chairperson of the Council shall cast the deciding vote. (8) Subject matter experts or relevant stakeholders may be invited to meetings of the Council as necessary. (9) The term of office of members pursuant to Clauses (c), (d), and (f) of Sub-section (2) shall be four years. (10) Other procedures relating to the meetings of the Council shall be as determined by the Council itself. 7.

#### Chapter-4

##### Provisions Relating to Formation, Functions, Duties, and Powers of the Board of Directors

8. Board of Directors: (1) A Board of Directors shall be constituted in the Public Service Broadcasting Institution as follows:-

(a) A person appointed by the Government of Nepal on the recommendation of the Recommendation Committee - Chairperson

(b) An officer of the Ministry of the rank of Joint Secretary (Gazetted First Class) designated by the Ministry - Member

(c) Three members, including at least one woman, nominated by the Ministry on the basis of the principle of inclusiveness from among persons with at least seven years of experience in the field of radio or television, ensuring representation of both fields - Member

(2) The Chairperson shall be the Chief Executive of the Public Service Broadcasting Institution.

(3) The Chief Administrative Officer shall act as the Secretary of the Board of Directors.

(4) The term of office of the Chairperson and members pursuant to Clause (c) of Sub-section (1) shall be four years.

(5) For nominating candidates for the appointment of the Chairperson pursuant to Clause (a) of Sub-section (1) to the Government of Nepal, a Recommendation Committee shall be constituted as follows:-

(a) Chairperson of the Public Service Commission or a member of the Public Service Commission designated by him/her - Coordinator

(b) Secretary, Ministry - Member

(c) One person nominated by the Ministry from among persons with at least ten years of experience in the field related to radio or television - Member

- (6) To recommend names for appointment based on open competition to the post of Chairperson, the Recommendation Committee must publish a notice in a national daily newspaper giving a deadline of at least seven days for candidates meeting the qualifications pursuant to Section 9 to submit applications.
- (7) A shortlist of eligible candidates shall be prepared from among the applications received pursuant to Sub-section (6), and such candidates shall be invited for an interview, presentation of a professional work plan, and its presentation.
- (8) From among the candidates pursuant to Sub-section (7), the Recommendation Committee shall recommend to the Government of Nepal the names of a maximum of three candidates who have obtained the highest scores from the interview, professional work plan, and its presentation, along with a list in order of merit.
- (9) The Recommendation Committee must recommend the names of eligible candidates within one month of commencing its work.
- (10) The Joint-Secretary of the Ministry looking after the relevant subject matter shall act as the Secretary of the Recommendation Committee.
- (11) Other procedures relating to the recommendation shall be as determined by the Recommendation Committee.
- (12) The remuneration, service, terms, and facilities of the Chairperson shall be as specified by the Government of Nepal.
9. Qualifications for Chairperson and Members of the Board of Directors: To be appointed as the Chairperson or a member of the Board of Directors, a person must possess the following qualifications:-
- (a) A citizen of Nepal,
  - (b) Has completed the age of thirty-five years,
  - (c) Of high moral character,
  - (d) In the case of the Chairperson, has obtained at least a Bachelor's degree from a recognized university and has at least fifteen years of experience in the field of journalism, humanities, management, marketing management, information technology, or broadcasting engineering,
  - (e) In the case of a member pursuant to Clause (c) of Sub-section (1) of Section 8, has obtained at least a Bachelor's degree,
  - (f) Is not a member of any political party at the time of appointment, and
  - (g) Is not an office bearer, director, or editor of a mass communication institution at the time of appointment.
10. Disqualification for Chairperson and Members of the Board of Directors: The following persons shall be deemed disqualified for appointment as the Chairperson or a member of the Board of Directors:-
- (a) A person who has taken permanent resident permit or citizenship of a foreign country,
  - (b) A person who has been punished by a court for corruption, rape, gender-based violence, human trafficking and transportation, drug sale, distribution or trafficking, money laundering, passport misuse, kidnapping, organized crime, or a criminal offense involving moral turpitude,

(c) A person who does not possess the qualification pursuant to Section 9, or

(d) A person who is disqualified according to prevailing law. 11. Circumstances for Vacancy of Office of Chairperson and Members of the Board of Directors: The office of the Chairperson or a member of the Board of Directors shall be deemed vacant in the following circumstances:-

(a) If the Chairperson submits a written resignation to the Government of Nepal, and a member submits a written resignation to the Ministry,

(b) If his/her term of office expires,

(c) If removed from office pursuant to Section 14,

(d) If disqualified pursuant to Section 10,

(e) If he/she has completed the age of sixty years, or

(f) If he/she dies. 12.

Functions, Duties, and Powers of the Board of Directors: The functions, duties, and powers of the Board of Directors shall be as follows:- (a) to approve the annual policies, plans, programs, and budget of the Public Service Broadcasting Institution, (b) to submit the annual report of the Public Service Broadcasting Institution to the Council, (c) to issue the code of conduct, standards, editorial quality, and program guidelines of the Public Service Broadcasting Institution, (d) to oversee, supervise, and control the overall management of the Public Service Broadcasting Institution, (e) to carry out necessary work for the protection of editorial freedom and impartiality, (f) to formulate and implement or cause to be implemented a work plan for the tasks performed by the Public Service Broadcasting Institution, (g) to conduct or cause to be conducted studies and research on subjects related to broadcasting, (h) to carry out necessary work to make news and programs qualitative, (i) to evaluate and monitor the work of the Chief Administrative Officer, (j) to approve the posts of employees of the Public Service Broadcasting Institution, and (k) to arrange for a mechanism relating to the hearing of public grievances regarding the services provided by the Public Service Broadcasting Institution.

13. Meetings and Decisions of the Board of Directors: (1) A meeting of the Board of Directors shall be held at least once a month on the date, time, and place specified by the Chairperson. (2) The meeting of the Board of Directors shall be presided over by the Chairperson. (3) If at least fifty-one percent of the total number of members of the Board of Directors are present, it shall be deemed to constitute a quorum for the meeting. (4) Decisions of the Board of Directors shall be made by a majority. If a majority cannot be reached in a meeting on any matter, the Chairperson shall cast the deciding vote. (5) The Chairperson shall certify the decisions of the meeting. (6) Other procedures relating to the meetings of the Board of Directors shall be as determined by the Board. 14.

Circumstances for Removal of Chairperson and Members of the Board of Directors: (1) Notwithstanding anything contained in Sub-section (4) of Section 8, the Chairperson of the Board of Directors may be removed by the Government of Nepal, and a member may be removed by the Ministry on the following grounds:- (a) Lack of efficiency, (b) Bad conduct, (c) Failure to honestly perform official duties, (d) Failure to work in accordance with the performance agreement, (e) Doing any act contrary to the interest of the Public Service Broadcasting Institution, or (f) Becoming incapable of performing duties due to mental or physical illness. (2) Prior to removal pursuant to Sub-section (1), such Chairperson or member must be given a reasonable opportunity to present a defense. 15. Functions, Duties, and Powers of the Chairperson of the Board of Directors: In addition to the functions, duties, and powers specified elsewhere in this Act, the

functions, duties, and powers of the Chairperson of the Board of Directors shall be as follows:- (a) to formulate annual policies, plans, programs, and budget and submit them to the Board of Directors for approval, (b) to prepare or cause to be prepared the agenda for the meetings of the Board of Directors, (c) to manage meetings of the Council, (d) to implement or cause to be implemented the decisions of the meetings of the Council and the Board of Directors, (e) to establish relations with national and international governmental and non-governmental organizations for the development of the Public Service Broadcasting Institution, with the approval of the Ministry, and (f) to perform tasks delegated by the Board of Directors of the Public Service Broadcasting Institution. 16. Meeting and Decision When the Office of Chairperson of the Board of Directors is Vacant: (1) When the office of the Chairperson of the Board of Directors is vacant, a member of the Board of Directors designated by the Ministry shall preside over the meeting. (2) The member of the Board of Directors designated by the Ministry pursuant to Sub-section (1) may call meetings of the Board of Directors and conduct all work and proceedings of the Board of Directors in the capacity of Acting Chairperson until other arrangements are made. Chapter-5 Provisions Relating to Appointment, Service, Terms, and Facilities of the Chief Administrative Officer 17.

Appointment of Chief Administrative Officer: (1) There shall be a Chief Administrative Officer to conduct the daily administrative work of the Public Service Broadcasting Institution under the general direction and control of the Chairperson of the Board of Directors. (2) The Board of Directors shall appoint the Chief Administrative Officer from among the senior employees working in the next lower post immediately below the post of Chief Administrative Officer of the Public Service Broadcasting Institution who have met the qualifications for promotion. (3) The term of office of the Chief Administrative Officer shall be a maximum of four years, not exceeding the maximum age limit for compulsory retirement stipulated in the law relating to service, facilities, and terms in force at the time of his/her appointment. 18. Functions, Duties, and Powers of Chief Administrative Officer: The functions, duties, and powers of the Chief Administrative Officer shall be as follows:- (a) to formulate the annual policies, plans, programs, and budget of the Public Service Broadcasting Institution and submit them to the Chairperson, (b) to prepare a work plan for the implementation of the annual program and submit it to the Chairperson, (c) to oversee, coordinate, control, monitor, and evaluate the work of the employees of the Public Service Broadcasting Institution, (d) to call meetings of the Board of Directors in accordance with the directives of the Chairperson, and (e) to perform other tasks assigned by the Board of Directors. Chapter-6 Financial Provisions 19. Fund of the Public Service Broadcasting Institution: (1) A Fund shall be established to operate the work and proceedings of the Public Service Broadcasting Institution effectively. (2) The Fund referred to in Sub-section (1) shall consist of the following amounts:- (a) Grants received from the Government of Nepal, (b) Grants received from the Provincial Government and Local Level, (c) Amounts received from foreign governments or foreign associations or organizations, and (d) Amounts received from the income of the Public Service Broadcasting Institution. (3) Prior to receiving amounts pursuant to Clause (c) of Sub-section (2), consent must be obtained from the Ministry of Finance of the Government of Nepal. 20. Audit: (1) The accounts of the income and expenditure of the Fund shall be maintained in accordance with the format approved by the Government of Nepal. (2) Internal audit of the Fund of the Public Service Broadcasting Institution must be conducted in accordance with the prevailing federal law. (3) The final audit of the income and expenditure of the Fund of the Public Service Broadcasting Institution shall be carried out by the Auditor General. Chapter-7 Miscellaneous 21.

Audience and Viewer Group May be Formed: (1) Audience and viewer groups may be formed to seek necessary opinions, advice, and suggestions regarding the programs and news broadcast by the Public Service Broadcasting Institution. (2) While forming audience and viewer groups pursuant to Sub-section (1), it must be done on the basis of the principle of inclusiveness ensuring representation, as far as possible, of

women, Dalit, indigenous nationalities, Madhesi, Tharu, Muslim, backward classes, minorities, marginalized groups, persons with disabilities, gender and sexual minorities, peasants, workers, citizens of oppressed or backward regions, and economically poor Khas Arya. (3) The audience and viewer group formed pursuant to Sub-section (1), or the network of such groups, shall not use such group or network for any purpose other than matters related to the broadcast programs of the Public Service Broadcasting Institution. (4) The functions, duties, powers, and operating procedures of the group pursuant to Sub-section (1) shall be as prescribed. 22. Provisions Relating to Employees: (1) The Public Service Broadcasting Institution may appoint employees according to the posts approved by the Ministry to conduct its work. (2) After the commencement of this Act, any expert person or newsreader may be employed by the Public Service Broadcasting Institution on a contract basis or at wages. 23. Departmental Action in Case of Violation of Code of Conduct: (1) If an employee violates the code of conduct issued pursuant to this Act, departmental action shall be taken against him/her in accordance with the prevailing law relating to his/her service terms. (2) If the Chairperson or a member violates the code of conduct, he/she may be removed from office on the grounds of failing to perform duties pursuant to Clause (c) of Sub-section (1) of Section 14. 24. Assurance of Broadcasting Frequencies: (1) Notwithstanding anything contained in the prevailing law, the first priority for broadcasting frequencies shall be given to the Public Service Broadcasting Institution. (2) The Government of Nepal shall provide the frequencies necessary for the Public Service Broadcasting Institution to expand broadcasting services to any part of the country free of cost. 25. Transitional Provisions: Nepal Television and Radio Nepal shall be converted into the Public Service Broadcasting Institution pursuant to Sub-section (3) of Section 3 as follows:- (a) The posts approved in Nepal Television and Radio Nepal at the time of commencement of this Act shall be reviewed on the basis of the need and justification of the Public Service Broadcasting Institution, and the posts shall be restructured. (b) Permanent employees working in Nepal Television and Radio Nepal at the time of commencement of this Act shall be adjusted into the matching posts (position, level, and class) maintained pursuant to Clause (a).

Provided that, employees appointed on a contract or those working under an agreement shall be managed only according to the needs of the Public Service Broadcasting Institution.

(c) Employees who cannot be adjusted into matching posts, levels, and classes pursuant to Clause (b) may be provided arrangements for retirement by calculating their remaining period. Provided that, such period shall not be calculated to exceed the age of compulsory retirement.

(d) For the purpose of granting voluntary retirement to employees working in the Institution, the Public Service Broadcasting Institution may formulate and implement criteria and procedures with the consent of the Ministry.

(e) The service facilities of employees adjusted pursuant to Clause (b) shall not be less than the service facilities they have been receiving.

(f) The movable and immovable property and liabilities of Nepal Television and Radio Nepal existing at the time of commencement of this Act shall transfer to the name of the Public Service Broadcasting Institution after the commencement of this Act.

(g) The Board of Directors of the Public Service Broadcasting Institution must be formed within one year pursuant to this Act. Until such Board is formed, the Boards of Directors of Nepal Television and Radio Nepal shall function in their existing form. 26. Power to Give Directives: For the purpose of implementing the objectives of this Act, the Government of Nepal may give directives to the Public Service Broadcasting Institution on the following subjects:-

(a) Making the content broadcast by the Public Service Broadcasting Institution impartial, objective, reliable, and qualitative,

(b) Making the Public Service Broadcasting Institution competitive and service-oriented,

(c) Disseminating informational messages on matters of public concern, and

(d) Disseminating early warnings of disaster, and real and informational messages about the disaster situation. 27. Annual Report: (1) The Public Service Broadcasting Institution shall submit its annual report to the Government of Nepal.

(2) The Government of Nepal must submit the report referred to in Sub-section (1) to the relevant committee of the Federal Parliament.

(3) The report referred to in Sub-section (1) must include the following matters:-

(a) A brief description of the main activities carried out by the Public Service Broadcasting Institution throughout the year,

(b) Main matters mentioned in the audit report, and

(c) Details of the formation of audience and viewer groups and the opinions, advice, and suggestions provided by such groups. 28. Liaison with Government of Nepal: The Public Service Broadcasting Institution must liaise with the Government of Nepal through the Ministry. 29.

Power to Make Rules: (1) The Government of Nepal may make necessary rules for the implementation of this Act. (2) Without prejudice to the generality of Sub-section (1), rules may be made on the following subjects:-

(a) Relating to the Public Service Broadcasting Institution, (b) Relating to the operation of the Fund, and (c)

Relating to grievance hearing. 30. Power to Make Regulations and Procedures: (1) The Public Service Broadcasting Institution may, subject to this Act and the rules made under this Act, and with the approval of

the Government of Nepal, make and implement regulations on the following subjects:- (a) Relating to service terms and facilities of employees, and (b) Relating to financial administration. (2) The Public Service Broadcasting Institution may, subject to this Act and the rules made under this Act, make and implement

procedures on matters relating to the formation of audience and viewer groups. 31. Measurement of Act Implementation: The Ministry shall measure the implementation of this Act within one year from the date of completion of five years from the date of commencement of this Act, and subsequently within one year from

the date of completion of every five years, and must submit a report thereof to the relevant committees of both Houses of the Federal Parliament. 32. Repeal and Saving: (1) The Radio Broadcasting Service Development Committee (Formation) Order, 2041 is hereby repealed. (2) The work and proceedings done or

performed by Nepal Television established under the Communication Corporation Act, 2028 prior to the commencement of this Act shall be deemed to have been done or performed under this Act. (3) The work and proceedings done or performed pursuant to the Radio Broadcasting Service Development Committee

(Formation) Order, 2041 shall be deemed to have been done or performed under this Act.